



INSURANCE MARKETING COALITION

March 14, 2025

AI Action Plan
% National Science Foundation
Attn: Faisal D'Souza, NCO
2415 Eisenhower Avenue
Alexandria, VA 22314

Dear National Science Foundation:

We are writing to you today on behalf of the members of the Insurance Marketing Coalition (IMC) to provide comments regarding the AI Action plan outlined in Executive Order (EO) 14179, "Removing Barriers to American Leadership in Artificial Intelligence."

The IMC is a consortium of more than fifty companies representing a cross section of insurance industry stakeholders. Our members employ Americans in all fifty states and include large and small companies. The mission of IMC is to help protect the best interests of consumers by, among other things, promoting compliant and best practices in insurance marketing and services. Each year, we interact, collectively, with millions of consumers by providing information, education and meaningful choices related to their insurance coverage options. Some of our members are licensed agencies and brokers that represent multiple MA and ACA organizations and collectively enrolled more than a million beneficiaries in Medicare Advantage and Affordable Care Act plans in 2024. Other members are marketing and advertising companies that assist millions of beneficiaries to connect with licensed agents and brokers each year. Some of our members are technology companies that provide platforms and services to support brokers, agents, and marketers. Among other things, our members are dedicated to providing transparency in their efforts to help beneficiaries become aware of and understand their health insurance coverage options and select plans that meet their needs.

The IMC is particularly interested in providing comments with regard to the use of AI in agent/beneficiary interactions and compliance:

- I. Agent/beneficiary interactions:
 - A. Always disclose when AI is being used in the interaction to include the masking of accents.
 - B. Remove the need for explicit consent on the use of AI during phone calls. Many operators are confused on whether or not AI can be used, and unnecessarily burden customers with text messages regarding AI acceptance on outbound telephone calls. AI agents should be identified as AI agents.



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- C. Allow AI-based agents to communicate plan details with potential customers via phone/web/text.
 - D. Allow AI-based agents to complete sales with appropriate authentication from the consumer and to act with the same authority as existing licensed agents.
 - E. Incorporate the designated responsible licensed person framework (DRLP) to AI agents. A properly licensed agent must have oversight and responsibility for the AI agents. This has been the practice in online health insurance sales for years as eHealth pioneered many years before. And like human insurance agents, the AI agents and DRLP will be responsible for following all federal, state and local laws.
- II. Compliance:
- A. Mandate AI to perform compliance tasks that are too slow and too burdensome for current regulatory frameworks. For instance, current Medicare restrictions on carriers are almost impossible for CMS to monitor actively.
 - B. Mandate AI to perform those tasks that are government-based approvals but are too difficult to understand and interpret. An AI can be developed to streamline this process at the government level to provide the exact requirements for instant approvals and lighten the burden for all members of that regulatory approval chain.

Thank you for your attention to this important matter and we look forward to meeting with you to facilitate understanding of specific issues in the insurance industry.

Sincerely,

William DeCourcy
President of the Board
Insurance Marketing Coalition